

But if an annuity and a policy on the life of the *cestui que vie* be made the subject of a settlement, it is implied that the trustee is to pay the premiums out of the income (*d*). A mortgagee is not regarded as a trustee; and if, in the absence of any stipulation on the subject, he effects an insurance, it is on his own account, and he cannot claim to be entitled to the premiums under just allowances. It is the same [*581] as if a lessor or lessee insured, in * which case the other would have no claim to the benefit of the policy (*a*).

[20. **Direction by testator to carry on trade.**— In a recent case in Ireland (*b*), it has been held that a general bequest in the will of a trader to trustees upon trust to permit his wife to carry on his business so long as she should remain a widow was equivalent to a direction to the trustees to carry it on themselves with the property employed by the testator himself in the trade, and that the assets to the extent of such property were liable to pay for goods supplied to the testator's widow for the trade carried on by her; and where a will contained a direction that the testator's business was to be carried on for a specified time, without any actual disposition of his property beyond a direction for the payment by the executors of certain legacies, the executors were held to be entitled, so long as the business was carried on for the purposes of the will, to the free use and occupation of the business premises and the fixed plant and machinery without paying any rent for the same (*c*). Where a testator gave all his real and personal estate to trustees upon trust for sale and conversion, and empowered them to carry on his business and employ therein all the capital invested therein at his death, and to increase or abridge the business and his capital therein, an equitable mortgage by the trustees of the

(*d*) *Darcy v. Croft*, 9 Ir. Ch. Rep. 19. place supplied by 44 & 45 Vict. c. 41, s. 19, sub-sect. (1), (ii).]

(*a*) *Dobson v. Land*, 8 Hare, 216; and see *Ex parte Andrews*, 2 Rose, 410; *Phillips v. Eastwood*, Ll. & G. t. Sugden, 289. [But see 23 & 24 Vict. c. 145, s. 11; since repealed and its [(*b*) *Gallagher v. Ferris*, 7 L. R. Ir. 489; and see *Re Johnson*, 15 Ch. D. 548; *Strickland v. Symons*, 26 Ch. D. 245; *Boylan v. Fay*, 8 L. R. Ir. 374.]

[(*c*) *Re Cameron*, 26 Ch. D. 19.]